

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY
OF THE CITY OF CHEYENNE
Office of City Clerk**

January 23, 2023

The Governing Body of the City of Cheyenne met in regular session on this date beginning at 6:00 p.m. in Council Chambers and via electronic conference meeting. Present were: MAYOR – Patrick Collins, COUNCIL MEMBERS – Dr. Michelle Aldrich, Bryan Cook, Ken Esquibel, Richard Johnson, Pete Laybourn. Dr. Mark Rinne, Scott Roybal, Tom Segrave and Jeff White. Also present: Kristina F. Jones, City Clerk. The pledge of allegiance was recited.

Consent Agenda. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests and support by two other members is received. Any item removed from the Consent Agenda will be considered in its normal sequence on the agenda. Upon request by Mr. Laybourn, and pursuant to support received by Mr. White and Dr. Aldrich, item #22(a) was removed from the Consent Agenda. Mr. Esquibel moved to approve remaining items, seconded by Mr. White. Motion carried. Voting “yes” – all members of the governing body.

[CA] Minutes from Regular Meeting of the Governing Body on January 9, 2023. Motion (per Consent Agenda) carried.

ORDINANCE –3rd READING – Amending Ordinance No. 4455 defining the Terms and Conditions of Employment for sworn officers of the Cheyenne Police Department for Fiscal Year 2022-2023 by updating the department’s pay plan schedule as specified in Exhibit B relevant to cost-of-living adjustments for city employees. Reporting for Finance Committee, Mr. Roybal moved to approve on third and final reading seconded by Mr. Esquibel. Motion carried. Voting “yes” -all members of the governing body. (#4488)

ORDINANCE –2nd READING – Annexing to the City of Cheyenne, Wyoming, land located southwest of the intersection of Ridge Road and Holland Court. Reporting for Public Services Committee, Mr. Cook moved to approve on second reading, seconded by Mr. Segrave. Motion carried. Voting “yes” -- all members of the governing body. Public comment was made by: Jon Cecil, Peggy Escamilla, Renee Fowler, Sharon Tuggle and Elizabeth Staples. Comments were made by the following members of the governing body: Dr. Aldrich, Mayor Collins, Mr. Esquibel and Mr. Segrave.

ORDINANCE –2nd READING – Amending the Official Zoning Map of the City of Cheyenne changing the zoning classification from County A-1 Agriculture and Rural Residential to NR-3 Neighborhood Residential-High Density for land located southwest of the intersection of Ridge Road and Holland Court. Mr. Cook advised there was no recommendation from Public Services Committee. Mr. Cook moved to approve on second reading, seconded by Mr. Roybal. Motion carried. Voting “yes” – Mayor Collins, Mr. Cook, Mr. Johnson, Mr. Roybal, Mr. Segrave and Mr. White. Voting “no” - Dr. Aldrich, Mr. Esquibel, Mr. Laybourn and Dr. Rinne. Public

comment was made by: Jon Cecil, Peggy Escamilla, Rebecca Murchie, Sharon Tuggle, Kristi Barrowman, Janette Wallace, Roger Alexander, Brad Emmons, AVI, Agent for the applicant, Jason Stephen, Gateway Construction, Paul Ricketts, Amber Raegan, Chris Rummel and Mathew Kasper. Comments were made by the following members of the governing body: Dr. Aldrich, Mayor Collins, Mr. Cook, Mr. Esquibel and Mr. Segrave.

ORDINANCE –2nd READING – Annexing to the City of Cheyenne, Wyoming, land located east of Southwest Drive north of I-80. Mr. Cook moved to approve on second reading, seconded by Mr. Segrave. Motion carried. Voting “yes” - all members of the governing body.

ORDINANCE –2nd READING – Amending the Official Zoning Map of the City of Cheyenne changing the zoning classification from County LI Light Industrial to LI Light Industrial for land located east of Southwest Drive north of I-80. Mr. Cook moved to approve on second reading, seconded by Mr. White. Motion carried. Voting “yes” -all members of the governing body.

ORDINANCE –2nd READING – Vacating West 19th Street, west of Grant Avenue, City of Cheyenne, Laramie County, Wyoming (located south of Old Happy Jack Road, west of Missile Drive). Mr. Cook moved to approve on second reading, seconded by Mr. Segrave. Motion carried. Voting “yes” -all members of the governing body.

RESOLUTION – Declining the Community Development Block Grant (CDBG) entitlement grant between the City of Cheyenne and the U.S. Department of Housing and Urban Development (HUD) (Postponed from January 9, 2023). Mr. Roybal advised there was no recommendation from Finance Committee. Mr. Roybal moved to adopt, seconded by Mr. Segrave. Motion failed. Voting “yes” – Mayor Collins, Mr. Esquibel, Mr. Johnson and Mr. Segrave. Voting “no” – Dr. Aldrich, Mr. Cook, Mr. Laybourn, Dr. Rinne, Mr. Roybal and Mr. White. Public comment was made by: Scott Hoversland, WCDA, Dan Dorsch, Executive Director, Habitat for Humanity of Laramie County, Brenda Birkle, Executive Director, My Front Door, Julie Gliem, Cheyenne Landlord Association and Steve Ganison. Comments were made by the following members of the governing body: Dr. Aldrich, Mayor Collins, Mr. Esquibel, Mr. Laybourn, Dr. Rinne and Mr. Roybal.

[CA] RESOLUTION – Approving Water and Sanitary Sewer Services, by Outside User Water and Sanitary Sewer Services Agreements, for UMC Properties, LLC, for North Range Business Park 3rd Filing: Lot 2, Block 9, Laramie County, Wyoming. Motion (per Consent Agenda) carried. (#6297)

[CA] RESOLUTION – Authorizing the Mayor and the City Clerk to sign a Final Plat for the Maltese Cross, situated in the W1/2 of Section 16, Township 13 North, Range 66 West of the 6th P.M., and including a portion of public right-of way dedicated with Sweetgrass, 7th Filing, City of Cheyenne, Laramie County, Wyoming (located south of East Murray Drive west and adjacent to Sweetgrass Drive). Motion (per Consent Agenda) carried. (#6298)

[CA] RESOLUTION – Authorizing the Mayor and the City Clerk to sign a Final Plat for Dell Range Addition, Sixth Filing, a replat of a portion of Tract 25, Dell Range Addition, City of Cheyenne, Laramie County, Wyoming (located southwest of the intersection of Ridge Road and Holland Court) – referred to Public Services Committee. (SPONSOR – MR. COOK)

[CA] RESOLUTION – Reappropriating the Fiscal Year 2023 Budget of the City of Cheyenne according to the provisions of W.S. §§ 16-4-112 & 16-4-113 – referred to Finance Committee. (SPONSOR – MR. WHITE)

[CA] RESOLUTION – Directing City staff to prepare a Memorandum of Understanding between the City of Cheyenne and WJE, LLC regarding acceptance of Tracts 1, 2, and 3, Saddle Ridge 18th Filing subdivision as open space and defining private maintenance responsibility – referred to Public Services Committee. (SPONSOR – MR. COOK)

[CA] RESOLUTION – Expressing the support of the Governing Body and directing City staff to work with the Wyoming Department of Transportation to name the new segment of road created by the “Lincolnway Service Interchange” Project to recognize the USS Cheyenne (SSN-773) Naval Submarine – referred to Public Services Committee. (SPONSORS – DR. ALDRICH, MR. ESQUIBEL, MR. JOHNSON, MR. ROYBAL, AND MR. SEGRAVE).

[CA] RESOLUTION – Authorizing the submission of an application to the State Loan and Investment Board for a grant through the Local Government Project ARPA grant program on behalf of the Governing Body for the City of Cheyenne for the purpose of providing critically needed flood control at East Dell Range Boulevard and Van Buren Avenue – referred to Finance Committee. (SPONSOR – MR. WHITE)

Memorandum of Understanding between the City of Cheyenne, Cheyenne Police Department, and the City of Laramie Police Department, for law enforcement extra-territorial assistance. Mr. Roybal moved to approve, seconded by Mr. White. Mr. Roybal moved to amend by substitute dated January 17, 2023, seconded by Mr. White. Motion to amend by substitute carried. Voting “yes”- all members of governing body. Main motion as amended by substitute carried. Voting “yes” – all members of the governing body. Comments were made by the following members of the governing body: Dr. Aldrich and Mayor Collins. (#7674)

[CA] Professional Services Agreement between the City of Cheyenne and AVI Professional Corporation, for the Storey Boulevard Extension Project Design and Bidding/Construction Services Project. (2019-2022 1% Optional Sales Tax Fund) Motion (per Consent Agenda) carried (in an amount not to exceed \$175,747.50). (#7675)

[CA] Professional Services Agreement between the City of Cheyenne, Cheyenne Metropolitan Planning Organization (MPO), and BenchMark Engineers, P.C., for the Southwest Drive Corridor Plan. (MPO Federal Funds) Motion (per Consent Agenda) carried (in an amount not to exceed \$116,480.00). (#7676)

[CA] Memorandum of Understanding between the City of Cheyenne and Dozzer, LLC, to authorize filing of platting application(s) for City-owned lands for the purpose of access and future development.) Motion (per Consent Agenda) carried. (#7677)

[CA] Sub-Award Agreement between the City of Cheyenne, Cheyenne Fire Rescue and the Memorial Hospital of Laramie County to provide grant funded community paramedicine services. (WY Department of Health, Community Emergency Medical Services Grant Program). Motion (per Consent Agenda) carried. (#7678)

[CA] Real Estate Purchase Agreement between Keizer Inc. and the City of Cheyenne for the purchase of real property generally located south of Atlantic Drive, between Cottonwood Drive and Centennial Drive and north of the Union Pacific Railroad, Laramie County, consisting of approximately 4.01 acres, more or less (2021 Specific Purpose Option Tax Fund) -- referred to Finance Committee.

[CA] Professional Services Agreement between the City of Cheyenne and Trihydro Corporation for the Landfill Methane Mitigation Work Plan Implementation (Solid Waste Fund) -- referred to Finance Committee.

[CA] Contract Modification #1 to Contract #7590-Owner and Design-Builder Agreement between the City of Cheyenne and FCI Constructors of Wyoming, LLC, for finishing the Cheyenne Public Safety Center (2012 & 2017 Specific Purpose Option Tax Funds) -- referred to Finance Committee.

Consideration of Bid #S-8-23 for an agreement between the City of Cheyenne and Cheeney Landscaping, Inc., for the Cheyenne Cemeteries Irrigation System Replacement Project. (2021 Specific Purpose Option Tax Fund). Mr. Roybal moved to approve in an amount not to exceed \$2,068,800.00, seconded by Mr. White. Motion carried. Voting “yes” – all members of the governing body. Comments were made by the following members of the governing body: Mr. Laybourn and Mr. White. (#7679)

[CA] Consideration of Bid #E-11-23 for fifty (50) trash receptacles for the City of Cheyenne, Community Recreation & Events Department (2021 Specific Purpose Option Tax Fund) -- referred to Finance Committee.

[CA] Consideration of Bid #S-3-23 for an agreement between the City of Cheyenne and Pole Mountain Electric, Inc. for the 17th Street Lighting Improvements Phase II Project (2017 Specific Purpose Option Tax Fund) -- referred to Finance Committee.

[CA] Consideration of Bid #S-10-23 for an agreement between the City of Cheyenne and JTL Group, Inc., d/b/a Knife River for 2023 City Overlay Part #1 (2019-2022 Optional 1% Sales Tax Fund and 2017 Specific Purpose Option Tax Fund) -- referred to Finance Committee.

Appointment of Robert Jarosh as Administrative Hearing Officer and legal counsel for the Governing Body for services related to a contested case hearing. Mr. Segrave moved to approve, seconded by Mr. White. Motion carried. Voting “yes” – all members of the governing body. Comment was made by the following member of the governing body: Mayor Collins.

Appointment of Robin Bocanegra to the Housing and Community Development Advisory Council. Mr. Roybal moved to approve, seconded by Dr. Aldrich. Motion carried. Voting “yes” – all members of the governing body with the exception of Mayor Collins who did not vote (mayoral appointment).

No comments were made on the Voucher Report as presented.

No comments were made on the Revenue Report as presented.

Announcement was made that a Calcutta benefitting Make-A-Wish Wyoming, will be held February 3 – February 4, 2023 at Red Lion Hotel and Conference Center, 204 W. Fox Farm Rd., Cheyenne, WY (10% of proceeds go to the charity).

Announcement was made of a Public Hearing to be held February 13, 2023 at 6:00 p.m. in City Council Chambers, 2101 O’Neil Avenue, Cheyenne, WY, and via electronic conference meeting, for a transfer of ownership of retail liquor license application filed with the City Clerk’s Office for Wyoming Horse Racing, LLC d/b/a Horse Palace, 6421 Speer Rd., Cheyenne, WY (license currently held by Poor Richard’s d/b/a Poor Richard’s).

The following member of the governing body made comment under other business: Dr. Aldrich.

Mr. Johnson moved to meet in executive session pursuant to Wyoming Statute §16-4-405(a)(vii)(x), seconded by Mr. Esquibel. Motion carried. Voting “yes” – all members of the governing body. Mayor Collins announced members would meet in executive session, not open to the public and stated there would be no action taken by the governing body as a result of the executive session, and that the regular City Council meeting would officially conclude at the close of the executive session. The following were in attendance: Gene MacDonald, GLM Design Group, LLC, Mathew Whipple, DHM Design Corporation, City Attorney, City Clerk, City Treasurer, Fire Chief, Chief of Staff and members of Planning and Development. (Clerk’s Note: executive session convened at 8:30 p.m.)

There being no further business to come before the governing body, the meeting was officially adjourned at 9:31 p.m.

Submitted by,

Kristina F. Jones,
City Clerk

This notice is available in alternative, accessible formats upon request.

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